

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 25, 2026
8:30 a.m./1:30 p.m.

6. KYRA MCAFEE V. MAXWELL MCAFEE (OTHER PARTIES: BRIAN BUNCH AND CORINNE BUNCH) PFL20210499

On March 27, 2026 Other Parties Brian and Corinne Bunch filed a Request for Order (RFO) seeking custody and visitation orders. There are Proofs of Service showing only service of the FL-300 and “supplemental declarations.” There is no Proof of Service for the required blank FL-320 or the Notice of Tentative Ruling.

Despite the fact that she was one of the moving parties, Other Party Corinne Bunch filed and served a Responsive Declaration to Request for Order on April 14th.

Respondent filed a Responsive Declaration to Request for Order on April 24, 2026.

The parties attended Child Custody Recommending Counseling (CCRC) on April 30, 2026 and were able to reach agreements. A report with those agreements was prepared on May 1st. It was mailed to the parties on May 1, 2026.

Other Party Corrine Bunch filed and served another Responsive Declaration to Request for Order on May 22nd along with an MC-030 declaration.

Petitioner filed and served a Responsive Declaration to Request for Order on June 11th.

Other Party Corrine Bunch filed and served another Responsive Declaration to Request for Order on June 16th.

Other Parties ask the court to make the following orders: (1) leniency in the 8:00pm bedtime order; (2) permission to travel with the children outside of El Dorado County up to twice per year; (3) clarification of the holiday order; (4) a minimum of 48 hours’ notice of extracurricular activities; (5) modifications to Paisley’s visitation schedule.

Respondent is requesting a set pick up/drop off location for the visits and a set holiday schedule. Additionally, he would like increased visitation time with the children and eventually 50/50 custody.

Petitioner asks the court to modify the current visitation order to remove overnight visitation at the grandparents’ residence. Instead, she proposes grandparent visits occur on the first, third and fifth Saturday from noon to 7:00pm.

After reviewing the filings as outlined above, the court finds the agreements in the May 1, 2026 CCRC report to be in the best interests of the children. The court adopts those

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agreements as the orders of the court with the following modifications. Petitioner shall have the children on Mother's Day each year and Respondent shall have the children on Father's Day each year. The Parenting Plan schedule shall be amended to include the following – "Paisley shall have visits with the maternal grandparents from Saturday at noon until Saturday at 7:00pm. If Paisley chooses, she may extend her visit to Sunday at 9:00pm." This section is also modified to include the provision that the maternal grandparents are to select the bedtime for the children during their parenting time. The Vacation section of the report shall be amended to include the following – "Vacations with the maternal grandparents may take place outside of Sacramento and El Dorado counties."

In addition to the above, the court is ordering Petitioner to give Respondent and Other Parties at least 48 hours' notice of any and all extracurricular or school events that will take place during the parenting time of Respondent or Other Parties. Petitioner is ordered to provide the date, time, location, and a list of required items needed for the activity.

Other Party is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #6: THE COURT FINDS THE AGREEMENTS IN THE MAY 1, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE CHILDREN. THE COURT ADOPTS THOSE AGREEMENTS AS THE ORDERS OF THE COURT WITH THE FOLLOWING MODIFICATIONS. PETITIONER SHALL HAVE THE CHILDREN ON MOTHER'S DAY EACH YEAR AND RESPONDENT SHALL HAVE THE CHILDREN ON FATHER'S DAY EACH YEAR. THE PARENTING PLAN SCHEDULE SHALL BE AMENDED TO INCLUDE THE FOLLOWING – "PAISLEY SHALL HAVE VISITS WITH THE MATERNAL GRANDPARENTS FROM SATURDAY AT NOON UNTIL SATURDAY AT 7:00PM. IF PAISLEY CHOOSES, SHE MAY EXTEND HER VISIT TO SUNDAY AT 9:00PM." THIS SECTION IS ALSO MODIFIED TO INCLUDE THE PROVISION THAT THE MATERNAL GRANDPARENTS ARE TO SELECT THE BEDTIME FOR THE CHILDREN DURING THEIR PARENTING TIME. THE VACATION SECTION OF THE REPORT SHALL BE AMENDED TO INCLUDE THE FOLLOWING – "VACATIONS WITH THE MATERNAL GRANDPARENTS MAY TAKE PLACE OUTSIDE OF SACRAMENTO AND EL DORADO COUNTIES."

IN ADDITION TO THE ABOVE, THE COURT IS ORDERING PETITIONER TO GIVE RESPONDENT AND OTHER PARTIES AT LEAST 48 HOURS' NOTICE OF ANY AND ALL EXTRACURRICULAR OR SCHOOL EVENTS THAT WILL TAKE PLACE DURING THE

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PARENTING TIME OF RESPONDENT OR OTHER PARTIES. PETITIONER IS ORDERED TO PROVIDE THE DATE, TIME, LOCATION, AND A LIST OF REQUIRED ITEMS NEEDED FOR THE ACTIVITY.

OTHER PARTY IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.